

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 26, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Mayor Collins congratulated Dr. Rinne for being presented the Person of the Year award by the Greater Cheyenne Chamber of Commerce.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Segrave, items #22, 29(c), 30(a) and 31(d) were removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Segrave and Mr. White, items #29(h) & 29(i) were removed from the Consent Agenda. Upon request by Mr. Segrave, and pursuant to support received by Dr. Aldrich and Mr. Cook, item #29(j) was removed from the Consent agenda. Mr. Laybourn moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 12, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for the City of Cheyenne’s Amended Program Year 2020 Consolidated Plan prepared by the Cheyenne Housing and Community Development Office. There being no comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing for a bar and grill liquor license application filed with the City Clerk’s Office for Wyoming Downs OTB14, LLC d/b/a Wyoming Downs OTB14, LLC, 1345 Dell Range Blvd., Cheyenne, WY. Public comment was made by: Tracy Laycock, Hirst Applegate, legal counsel for Wyoming Downs OTB14, LLC. Comments were made by the following members of the governing body: Mr. Cook and Dr. Rinne. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Roybal Motion carried. Voting “yes” – all members of the governing body. (#4508)

ORDINANCE – 2nd READING – Creating Chapter 2.96, Ethical Obligations of Public Officials, Public Members and City Employees, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, specifying the ethical duties and obligations of Public Officials, Public Members and Employees of the City of Cheyenne. Reporting for Public Services Committee, Mr. Segrave moved to approve on second reading, seconded by Mr. Cook. Mr. Segrave moved to postpone to July 10, 2023, seconded by Mr. Cook. Motion to postpone carried. Voting “yes” – all members of the governing body. Comment was made by the following members of the governing body: Dr. Aldrich.

ORDINANCE – 2nd READING – Amending Chapter 15.20, National Electrical Code Adopted-Appendix K, International Building Code-Administrative Provisions Adopted, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, updating the Incorporated National Electrical Code Provisions as specified. Mr. Segrave moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of and adjacent to the intersection of Thomas Road and Ridge Road. Mr. Segrave moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located northwest of and adjacent to the intersection of Thomas Road and Ridge Road. Mr. Segrave moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located south of and adjacent to Rawlins Street, east of Cleveland Avenue. Mr. Segrave moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located south of and adjacent to Rawlins Street, east of Cleveland Avenue. Mr. Segrave moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land being annexed to the City of Cheyenne located southwest of and adjacent to the intersection of Holland Court and Ridge Road. Mr. Segrave moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Rebecca Merchie.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial and MR Medium-Density Residential to MR Medium-Density Residential for land located on Lots 14 and 15, Christensen Park. Mr. Segrave moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 2.4.2 Annexations of the Unified Development Code, and creating Section 2.2.8, Assigned Zoning, clarifying City zone assignment processes in concert with annexations and when removing City zone districts. Mr. Segrave moved to approve on second reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Peggy Escamilla. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

ORDINANCE – 2nd READING – Amending Section 2.2.1.c.5 and 2.2.2.c.6 of the Unified Development Code (UDC), amending protest petitions for zoning map amendments and planned developments. Mr. Segrave advised there was no recommendation from Public Services Committee. Mr. Segrave moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comments were made by: Jason Stephen, Bedrock Development, Amber Reagan, Rebecca Merchie and Peggy Escamilla. Comments were made by the following members of the governing body: Mayor Collins, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave.

ORDINANCE – 1st READING – Creating Chapter 8.68, Camping in Public Places, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, Prohibiting the Act of Camping on Public Property as Specified – referred to Public Services Committee. (Sponsors – Mr. Laybourn and Mr. White)

RESOLUTION – Approving water services, by outside user agreement, for properties to be known as Ironhorse 3rd Filing, Laramie County, Wyoming generally located southeast of West Riding Club Road and Hynds Boulevard (Postponed from June 12, 2023). Mr. Segrave moved to adopt, seconded by Dr. Rinne. Mr. Segrave moved to postpone to July 10, 2023, seconded by Mr. Cook. Motion to postpone carried. Voting “yes” – all members of the governing body. Public comment was made by: Matt Kaufman, representing Ironhorse Capital.

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board to amend the amount received from the Drinking Water State Revolving Loan #229 from \$3,960,000 to \$4,785,000 for the North City Zone Improvements Project and

authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#6331)

RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts in the amount of \$79,185.43 pursuant to Wyo. Stat. § 16-4-502. Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Dr. Rinne. (#6332)

RESOLUTION – Authorizing the lawful possession of open containers of alcoholic liquor within the Downtown Development District Boundaries for rectifiers and distillers for seven specified dates in 2023. Mr. White moved to adopt, seconded by Mr. Roybal. Motion failed. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Johnson and Mr. Roybal. Voting “no” – Dr. Aldrich, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White.

[CA] RESOLUTION – Amending Resolution #6094, the City of Cheyenne Comprehensive Consolidated Plan 2020-2024 and 2020 Annual Action Plan, prepared by the Cheyenne Housing and Community Development Office – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Pursuant to Wyoming Statute § 15-9-106 Finding and Declaring Jolly Rogers and Expanded Downtown in the City of Cheyenne as blight and authorizing the redevelopment thereof – referred to Public Services Committee. (Sponsors – Mr. Johnson and Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sunrise Hills North Subdivision, a replat of a portion of Tract 25, Dell Range Addition, Laramie County, Wyoming (located northwest of and adjacent to the intersection of Thomas Road and Ridge Road) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, 2nd Filing, a Replat of Lot 15, Christensen Park, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Cribbon Avenue and Dodge Ct.) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – To initiate annexation proceedings by the City of Cheyenne for an area generally located west of Interstate 25, north of State Highway 210, east of Roundtop Road, and south of Horsecreek Road, commonly known as Francis E. Warren Air Force Base, Wyoming – referred to Public Services Committee. (Sponsors – Dr. Aldrich and Mr. Segrave)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of construction for a Greenway path for

pedestrians and bicycles from the Sun Valley Open Space into Kiwanis Community Park – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) for the period of July 1, 2023 to June 30, 2024 (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$75,000.00). (#7774)

[CA] Professional Services Agreement between the City of Cheyenne and Sunrise Engineering for the 7th Street Drainage and Access Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$74,800.00). (#7775)

Memorandum of Understanding between the City of Cheyenne and the Wyoming Department of Transportation for the City's Childs Draw South Tributary Enhancements Project (2019-2022 Optional 1% Sales Tax Fund). Mr. White moved to approve in an amount of \$115,000.00, seconded by Mr. Laybourn. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook and Dr. Rinne voting "no". Comment was made by the following member of the governing body: Mr. Laybourn. (#7776)

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for setting terms and conditions for participating in Federal Project No. B231031, Surface Transportation Urban Program (US 30, Dell Range Boulevard, and Whitney Road) (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$824,464.00). (#7777)

Agreement between the City of Cheyenne, Laramie County, and Cheyenne Animal Shelter for Animal Shelter Services (General Fund). Mr. White moved to approve in an amount not to exceed \$800,000.00 for FY 2024, \$850,000.00 2025, and \$900,000.00 for FY 2026, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated June 12, 2023, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body. Public comment was made by: Brittany Tennant, CEO, Cheyenne Animal Shelter. Comments were made by the following members of the governing body: Mayor Collins, Mr. Cook, Mr. Laybourn, Mr. Segrave and Mr. White. (#7778)

[CA] Agreement between the City of Cheyenne and Laramie County for Animal Control Services (Revenue to City). Motion (per Consent Agenda) carried. (#7779)

[CA] Professional Services Agreement between the City of Cheyenne and Davis & Cannon, LLP for representation in certain real property litigation related matters (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$115,000.00). (#7780)

Mr. White moved to suspend the rules to allow for consideration of item #29(i) prior to item #29(h), seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body.

Preliminary Engineering Services Agreement between the City of Cheyenne and BNSF Railway Company for BNSF Contract Number BF-20246698, for Project Review and Diagnostic Evaluation/Quiet Zone Project (2017 Specific Purpose Option Tax Fund). Mr. White moved to approve in an amount of \$96,410.00, seconded by Mr. Laybourn. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Public comment was made by: Randy Grauberger and DJ Mitchell, Quandel Consultants. Comments were made by the following members of the governing body: Mayor Collins, Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#7781)

Professional Services Agreement between the City of Cheyenne and DHM Design Corporation for the Reed Avenue Rail Corridor Design Project (2017 Specific Purpose Option Tax Fund). Mr. White moved to approve in an amount of \$1,281,279.20, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Segrave voting “no”. Public comment was made by: Matthew Whipple, DHM Design. Comments were made by the following members of the governing body: Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#7782)

Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for the School Resource Officers Program (SRO) (Revenue to City). Mr. White moved to approve in an amount of \$619,552.00 plus overtime, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#7783)

[CA] Memorandum of Understanding between the Cheyenne Historic Preservation Board and the Cheyenne Masonic Building Association regarding the fulfillment of the match requirement for the Wyoming State Historic Preservation Office, Certified Local Government Grant awarded to the Cheyenne Historic Preservation Board for a building assessment on the Masonic Temple – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and Gysel Whitney, LLC for the future Storey Boulevard Right-of-Way (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Utility Easement Agreement between the City of Cheyenne and the Board of Public Utilities for installation and maintenance of a water main on City owned property – referred to Finance Committee.

Contract Modification #1 to Contract #7538 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Municipal Building (General Fund). Mr. White moved to approve in an amount not to exceed \$84,366.00, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Comment was made by the following member of the governing body: Mr. Laybourn. (#7538)

[CA] Contract Modification #1 to Contract #7539 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Municipal Court Building (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$27,387.96). (#7539)

[CA] Contract Modification #1 to Contract #7540 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Cheyenne Public Safety Center (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$99,716.04). (#7540)

[CA] Contract Modification #1 to Contract #7541 between the City of Cheyenne and TFM-22 LLC d/b/a Top-Flight Maintenance Inc. for Janitorial Services for the Youth Alternatives & Special Friends Building (General Fund & Youth Alternatives Projects Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,011.00). (#7541)

[CA] Consideration to Purchase between the City of Cheyenne and LN Curtis for the purchase of seventy-two (72) sets of bunker gear for the Cheyenne Fire Rescue Department (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$392,832.00).

[CA] Consideration of Bid #E-21-23 for one (1) new emergency medical vehicle for the City of Cheyenne, Cheyenne Fire Rescue Department. (2019-2022 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund and Wyoming Office of Homeland Security, Assistance to Firefighters Grant). Motion (per Consent Agenda) carried (accepted bid from Professional Sales & Service, Salt Lake City, UT, in an amount not to exceed \$495,508.55).

[CA] Consideration of Bid #S-6-23 for an Agreement between the City of Cheyenne and Reiman Corp. for the Pumphouse Wetlands Dredging Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$99,864.50). (#7784)

Consideration of Bid #S-22-23 for an agreement between the City of Cheyenne and Ameri-Tech HVAC Services, Inc., for the HVAC and Mechanical Systems Maintenance Project (2019-2022 Optional 1% Sales Tax Fund, 2012 Specific Purpose Option Tax Fund, Civic Center Fund, Fleet Maintenance Fund, General Fund, Solid Waste Fund and the Ice and Events Center Fund). Mr. White moved to accept the bid in an amount not to exceed \$1,532,862.00, seconded by Mr. Segrave. Motion carried with all members of the governing body voting “yes” with the exception of Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#7785)

Retail liquor license application filed with the City Clerk’s Office for Cheyenne Regional Airport Board d/b/a Cloud Nine Restaurant & Bar, 300 East 8th Ave., Cheyenne, WY. Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. White voting “no”. Public comment was made by: Mike Moser, Executive Director of the Wyoming State Liquor Association. Comments

were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave.

[CA] Request to amend a previously approved outdoor seating area for consumption relating to the City of Cheyenne Bar & Grill Liquor License held by Paris West Restaurant and Bar, located at 1719 Central Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Reappointments of Merle Smith and Richard Vallee to the Public Transit Advisory Board; Stefanie Reese and Danica Mrozinsky to the Cheyenne Downtown Development Authority; Kenneth Dugas to the Urban Renewal Authority; JJ Chen to the Cheyenne-Laramie County Economic Development Joint Powers Board; Kathy Emmons, Jeffrey Merton O'Holleran and Carla Thurin to the Laramie County Community Juvenile Services Joint Powers Board; and Mackenzie Howard to the Community Action of Laramie County Board of Directors. Mayor Collins noted Stefanie Reese's appointment is not due for reappointment and removed her from the reappointments. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointments of Timothy Johnson and Joel Hickerson to the Laramie County Community Juvenile Services Joint Powers Board; Michael Rucker to the Public Transit Advisory Board; and Janelle Rose, Judy Moss, and Landyn Medina to the Cheyenne Downtown Development Authority Board. Mr. Laybourn moved to approve, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception Mr. Johnson voting "no" and Mayor Collins who did not vote (mayoral appointments).

There were no comments made on the Voucher Report as presented.

There were no comments made on the Revenue Report as presented.

Announcement was made that a calcutta benefitting Cheyenne area charities will be held on Saturday, July 29, 2023 at 5:30 p.m. in the Cowboy Bistro, located beside the Rodeo Committee Cabin at Frontier Park, Cheyenne, Wyoming, in conjunction with the 2023 Cheyenne Frontier Days Rodeo (10% of proceeds go to bona fide charities).

Announcement was made that due to the Independence Day holiday on Tuesday, July 4, 2023, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at 10:00 a.m. Wednesday, July 5, 2023 and Public Services Committee will meet at Noon on Wednesday, July 5, 2023. Both meetings will be held at 2101 O'Neil Avenue, Room 104 and via electronic conference meeting.

The following members of the governing body made comments under other business: Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:02 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
July 5, 2023